

Date

{Today}

Reference Number

{Reference Number}

Commitment {Reference Number}.

<u>Applicant/Instructing Party:</u>	{Your contact details}
<u>Beneficiary:</u>	{The Beneficiary contact details}
<u>Agreement/Transaction Number:</u>	{Reference of your underlying contract}
<u>Description Agreement/Transaction:</u>	{Description of your underlying contract}
<u>Maximum Amount:</u>	{Bank guarantee Amount}
<u>Guarantor/the Bank:</u>	ING Belgium S.A., with its registered office at Marnixlaan 24 – 1000 Brussels
<u>Period of Validity:</u>	If you've selected a specified of Bank guarantee : This bank guarantee is valid until {Final end date}. However, this bank guarantee will expire sooner if the Bank receives a written discharge from the Beneficiary. If you've selected an unspecified end of Bank guarantee : The Bank is entitled to terminate the bank guarantee at any time by written notice to the Beneficiary with 1 month(s) notice. The bank guarantee will expire automatically and in full at the end of the period of notice. If the Bank receives a written request for payment from the Beneficiary before the end of the period of notice, the Bank shall make the payment in accordance with the provisions of this bank guarantee.

A bank guarantee is required in respect of the bid submitted by the Applicant/Instructing Party in response to the aforementioned Tender/Procurement.

The Bank declares as follows:

The Bank undertakes to pay the Beneficiary on receipt of a first written and signed request from the Beneficiary, as its own debt any amount, but not exceeding in total the aforementioned Maximum Amount.

To be valid, the request for payment must be sent to us:

- either by registered letter;
 - or digitally with a qualified electronic signature (eID or certificate) of the Beneficiary,
- and must arrive at the Bank respectively at its address below or e-mail address



bankguarantees@ing.be within the prescribed Period of validity of the bank guarantee.

The Bank is only obliged to make the payment if the Beneficiary declares in the request that:

- the Applicant/Instructing Party has failed to fulfil its obligations arising from the bid submitted in response to the aforementioned Tender/Procurement, and
- indicates the amount of which it is requesting payment under the bank guarantee.

The Bank will not require any further proof of liability other than the aforementioned written declaration from the Beneficiary.

Any payment made under this bank guarantee shall automatically reduce the Maximum Amount by the amount paid.

This bank guarantee is governed by Belgian law. All disputes relating to this bank guarantee may only be referred to the competent Belgian courts.

All correspondence concerning this bank guarantee and any requests for payment must be addressed to ING Belgium S.A., Guarantees Department, avenue Marnixlaan 24, B-1000 Brussels, or by e-mail to bankguarantees@ing.be